

## **Calendar Line 1**

Case Name: *Hathaway v. Alliance Roofing Company, Inc.*  
Case No.: 22CV401365  
(Lead Case, Consolidated with Case No. 22CV407856)

This is a putative class and representative action arising from alleged wage and hour violations. Plaintiffs Chad Hathaway and Edwardo Contreras Ruiz (collectively, “Plaintiffs”) filed two separate cases that are now consolidated. Before the Court is defendant Alliance Roofing Company, Inc.’s (“Defendant’s”) motion for summary adjudication, which Plaintiffs oppose. For the reasons stated below, the Court DENIES the motion for summary adjudication and DENIES Defendant’s request to strike Plaintiffs’ opposition.

### **I. Introduction**

Plaintiffs are former employees of Defendant and were members of Local Union 95 – United Union of Roofers, Waterproofers and Allied Workers (“Local 95”) during their employment with Defendant, a roofing company. Hathaway was employed from March 11, 2020 to July 24, 2020, and Ruiz was employed from February 28, 2017 to February 4, 2022. They filed their initial complaints in 2022, and the Court consolidated the two actions on April 17, 2024.

On January 30, 2025, Defendant moved to compel arbitration under the language of a collective bargaining agreement (“CBA”) agreed to by the Plaintiffs’ union and a roofing contractors association. On April 28, 2025, the Court denied that motion. In reaching its conclusion, the Court determined that the August 2024 CBA applied retroactively to Plaintiffs’ pending claims. Nevertheless, the Court denied the motion to compel arbitration because it found that Defendant had waived its right to compel arbitration through its litigation conduct over the preceding two years. (See *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 585 [“[t]he waiver inquiry is exclusively focused on the waiving party’s conduct; neither the effect of that conduct on the party seeking to avoid enforcement nor that party’s subjective evaluation of the waiving party’s intent is relevant”].)